Democratic Stability, Backsliding, and Self-Enforcement

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Thesis: Endogenous justifications for democratic stability fail to account for democratic backsliding, and thus we should prefer exogenous justifications for its stability.

Endogenous: a theory of democratic stability is *endogenous* iff it posits that there is an in-built mechanism of democratic forms of governance that keep it stable

Exogenous: a theory of democratic stability is *exogenous* iff it does not posit an in-built mechanism that keeps democratic forms of governance stable

I Rawls' Overlapping Consensus and Democratic Stability

A. Rawls' Account

Stability *for the right reasons*: stability for a more meaningful reason than mere pragmatism

Comprehensive doctrine: worldview about justice, the good, etc.

Reasonable pluralism: sociological claim that modern societies will contain multiple reasonable comprehensive doctrines

Reasonable: accepting duties of reciprocity and burdens of judgment

Modus vivendi: purely pragmatic "way of living"

Constitutional consensus: consensus on basic procedures for adjudicating political conflict

Overlapping consensus: morally laden concept of justice that all reasonable comprehensive doctrines can converge on

Rawls' picture: *bellum omnium contra omnes* –> *modus vivendi* –> constitutional consensus –> overlapping consensus

B. The Accommodation Problem

ACCOMMODATION PROBLEM: a Rawlsian overlapping consensus cannot remain stable in societies with a large illiberal population, as the Rawlsian project rests on a cooperative model of politics which cannot account for illiberal theories of politics as antagonistic.

Freund-Feind:"The specific political distinction to which political actions and motives can be reduced is that between friend and enemy." (Schmitt 1996 [1932]). I do not condone Schmitt's worldview, but merely mention it as a competing view that threatens the liberal conception of legitimacy based on public reason. Schmitt's doctrine is merely one of several unreasonable doctrines which pose a risk for public reason.

Quong 2004, Kirshner 2014

TWO ALTERNATIVES:

1. *Exclude*: exclude the unreasonable by prioritizing the rights of the reasonable over the unreasonable
2. *Accommodate*: accommodate the unreasonable by attempting to form fair terms of cooperation with them

PROBLEMS WITH *Exclude*:

1. Presumes that it is the liberal state which can enforce these demands and thus provides little guidance on how to achieve a liberal state in the first place
2. Ignores role of non-state actors (see, e.g., Levitsky and Ziblatt 2018, Stehr 2025)
3. The *Verfassungsschutzproblem*: why assume the enforcers have the same worldview as the state? (Mackenzie and Kaunert 2024)
4. Arbitrariness worry: such an attempt at exclusion is necessarily political in Schmitt's sense and requires further grounding (Mouffe 2009, Accetti and Zuckerman 2017)

PROBLEMS WITH *Accommodate*:

1. normalizes the unreasonable party in the eyes of the electorate (Levitsky and Ziblatt 2018, Carrothers and Harnett 2024, vide Mattei 2017)
2. empirical evidence suggests it increases the vote share of unreasonable parties (Krause et al 2022)

C. The Demarcation Problem

DEMARCATION PROBLEM: Rawls cannot draw a practical boundary between reasonable and unreasonable comprehensive doctrines in societies where a critical mass of people are unreasonable in a way that ensures that people converge on justice as fairness (Pevnick 2024)

Either constrains on reasonableness overprune, which undermines reasonable pluralism

Or they underprune, which undermines the possibility of reaching justice as fairness

D. The Temporal Problem

TEMPORAL PROBLEM: Democratic backsliding shows that we can run the Rawlsian story in reverse, meaning overlapping consensus need not be temporally stable.

3 steps:

1. From an overlapping consensus to a constitutional consensus
2. From a constitutional consensus to a *modus vivendi*
3. From a *modus vivendi* to a war of all against all

1. FROM AN OVERLAPPING CONSENSUS TO A CONSTITUTIONAL CONSENSUS

THOMAS' *Quinque Viae*:

1. Capital incentivizes the adoption of worldviews at loggerheads with the epistemic and moral components of public reason (Horkheimer 1993 [1937])
2. Intellectual reified consciousness turns all reason into the private use thereof (Lukacs 1970 [1923], Horkheimer 1993 [1931])
3. Capital creates social relations which create illusion of independence (Machiavelli 2018 [1531])
4. Capital relies on *rackets*: institutions which ossify existing class relations through force (Horkheimer 2026)
5. Capital incentivizes Foucault's boomerang

The last 3 steps skip directly to a *modus vivendi*!

2. FROM A CONSTITIONAL CONSENSUS TO A *modus vivendi*:

Democratic backsliding: state-led debilitation of institutions that sustain democracy (Bermeo 2016)

Executive aggrandizement: elected executives' weakening of checks on their power.

Backsliding is obviously incompatible with a constitutional consensus

Quinque viae weaken the commitment to the shared moral norms needed to keep a constitutional consensus glued together.

3. From a *modus vivendi* to a war of all against all

Modi vivendorum have no independent moral force, so people can exit them if they think they can get a better deal elsewhere (Rawls 1993)

II Pzreworski's Version of Self-Enforcing Democracy

A. Przeworski

Democracies are *self-enforcing*: institutional structure ensures compliance with electoral outcomes

Spontaneous and decentralized: democratic self-enforcement does not require outside intervention to ensure stability

> Przeworski's central claim: democratic institutions structure incentives to make compliance with bad electoral outcomes better for one's self-interest than attempting to subvert said outcomes (Przeworski 1991)

B. Voter Enfranchisement Limitation

Weak incumbents in societies *without* universal suffrage have an incentive to expand suffrage (Teele 2018)

Weak incumbents in societies *with* universal suffrage may also have structural incentives to limit suffrage for similar reasons

This phenomenon is worsened by:

1. Perennial losers, who are not self-enforcing (Przeworski 1991)
2. Right-populists who deny pluralism conceptually (Müller 2017)

Election of such parties incentivizes executive aggrandizement

C. The War of Mediate Inclinations

Incentive to comply with electoral outcomes is a mere mediate inclination

Two problems:

1. inclination to comply with bad electoral outcomes can be undermined by other, more powerful inclinations such that the other

mediate inclination pushes a political actor to subvert democratic norms

2. democratic self-enforcement is a mere means, and is undone if cost of subversion is lower than cost of compliance

For a real-world example of this, see the discussion of Yeltsin and the so-called *siloviki* after October 1993 in (Gel'man 2024)

III. Fearon's Model of Self-Enforcing Democracy

A. Fearon's Model

Threat of popular rebellion is key part of self-enforcement of democracy

(Fearon 2011)

Elections serve as publicly understood rules and coordination point for democratic norms

Thus, their violation would trigger popular unrest, giving incumbents reason to comply with electoral outcomes

Fearon's limitations:

1. Buy-in from those with the means of coercion
2. sophisticated electoral fraud beyond the ken of the average voter

B. Why Fearon's Model is Still Preferable

There are other means of coercion available to the people besides violence

e.g., strikes, boycotts

Even buy-in from military can be overcome if there is sufficient popular support for democratic enforcement

E.g., Kapp-Lüttwitz Putsch (Feldman 1971, Smaldone 2008, Feuchtwanger 1993)

Epistemic components of civil society organizations can overcome sophisticated electoral fraud

(Anderson 2006, Young 2000)